

SENATE No. 1540

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act protecting personal identifying information on records of death.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No. 1540

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 1540) of Barry R. Finegold for legislation to make it unlawful to disclose identifying information contained in death records. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act protecting personal identifying information on records of death.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 46 of the General Laws is hereby amended by striking section 2A,
2 as appearing in the 2022 Official Edition, and inserting in place thereof the following section:-

3 (a) Examination of records and returns of fetal deaths or of copies of such records in the
4 department of public health, shall not be permitted except upon proper judicial order, or upon
5 request of a parent, guardian, or conservator, or a person whose official duties, in the opinion of
6 the town clerk or the commissioner of public health, as the case may be, entitle them to the
7 information contained therein, nor shall certified copies thereof be furnished except upon such
8 order, or the request of such person. The provisions of this section shall not apply to such
9 records, returns or notices recorded or filed prior to January 1st, 1841 or to such copies thereof.

10 (b) It shall be unlawful for any person to permit inspection of, or to disclose information
11 contained in, certificates of death or to copy or issue a copy of all or part of any such certificate
12 except as authorized by this section and any accompanying regulations or by order of a court of

competent jurisdiction. The provisions of subsections (b) through (i), inclusive, shall only apply to certificates of death.

(c) The state registrar or town clerk, upon receipt of a written application, shall issue:

(i) A certified copy of a certificate of death to:

(1) The decedent's spouse, parent, child, sibling, grandparent, grandchild, next of kin or legal guardian at the time of death;

(2) A legal representative for the decedent or any of the parties listed in the preceding subclause;

(3) A court of competent jurisdiction upon its order or subpoena;

(4) Any governmental agency or entity, provided that such copy shall be needed for official purposes;

(5) An employee or agent of a funeral home or person acting as a funeral service practitioner who is named in the certificate of death;

(6) A person who demonstrates to the satisfaction of the state registrar or custodian that the certified copy is necessary for a determination related to or the protection of a personal or property right of the applicant;

(7) Any applicant whom the state registrar or custodian of the certificate of death deems having a direct and tangible interest in the certificate; and

(ii) A noncertified informational copy of a certificate of death in that registrar's or custodian's custody or abstract thereof to any applicant, provided that the informational copy

shall have the decedent's social security number and cause of death redacted. A noncertified informational copy may not comply with the security features pursuant to sections 16, 19C and 33 and shall not be used for legal purposes; provided, however, that the registrar shall promulgate regulations or guidelines related to permissible uses of a noncertified informational copy of a certificate of death. Said noncertified informational copy shall contain a clear and conspicuous watermark stating the copy cannot be used for legal purposes.

(d) Each certified copy issued shall show the date of registration; provided, that duplicates issued from records marked "delayed" or "amended" shall be similarly marked, including the effective date. The documentary evidence used to establish a delayed certificate of birth shall be shown on all duplicates issued. All forms and procedures used in the issuance of certified copies of vital records in the commonwealth shall be provided or approved by the state registrar.

(e) The state registrar may transmit duplicates of certificates of death and other reports required by this section to offices of vital records outside of this state when such certificates or other reports relate to residents of those jurisdictions or persons born in those jurisdictions. The state registrar shall require that the duplicates be used for statistical and administrative purposes only and shall establish terms for the retention and disposition of such duplicates. Duplicates received by the department from offices of vital statistics in other states shall be handled in the same manner as prescribed in this section.

(f) No person shall prepare or issue any certificate which purports to be an original, certified copy or duplicate of a certificate of death except as authorized in this section or accompanying regulations.

(g) No duplicates or parts thereof of a certificate of death shall be reproduced or information copied for commercial or speculative purposes. This subsection shall not apply to published results of research.

(h) The provisions outlined in this section shall not apply to fetal deaths and those provisions outlined in section 202 of chapter 111.

(i) The state registrar shall promulgate regulations or guidelines for the implementation of this section, including, but not limited to authorization of the disclosure of information contained in certificates of death for research purposes.

SECTION 2. Subsection (h) of section 13 of said chapter 46 is hereby amended by striking out, in lines 174 to 183, inclusive, the words “not be restricted, except for records or other items of documentary evidence submitted in support of the affidavit which are considered medical records for purposes of paragraph (c) of clause twenty-sixth of section 7 of chapter 4 are restricted by section 2A of this chapter, or are restricted by judicial order” and inserting in place thereof the following:- “be restricted pursuant to section 2A of this chapter.”